



CHAPTER lxxxi.

An Act to empower the Corporation of Leeds to construct additional waterworks and to acquire lands and for other purposes. A.D. 1907.
[26th July 1907.]

WHEREAS the lord mayor aldermen and citizens of the city of Leeds (in this Act called "the Corporation") are the owners of waterworks and supply water within the city of Leeds and neighbourhood:

And whereas by the Leeds Corporation Water Act 1901 (in this Act called "the Water Act") the Corporation were authorised to construct certain waterworks in the north and west ridings of the county of York and to take and appropriate the waters of the River Burn the Pott Beck and the River Laver and their respective tributaries:

And whereas the Corporation have commenced to carry into execution the powers of the Water Act and in order the better to effect the purposes thereof it is expedient that they should be authorised to abandon the Colsterdale Reservoir and certain other waterworks authorised by the said Act and to construct partly on the same site a substituted reservoir and to make such new works and such alterations in the authorised works as in this Act mentioned and to empower the Corporation to apply moneys borrowed under the Water Act to the purchase of land for and the construction of the substituted reservoir and other waterworks authorised by this Act:

And whereas it is just and expedient that the provisions of the Water Act relating to the discharge of compensation water should be amended as provided by this Act:

And whereas it is expedient that the Corporation should be empowered to take a limited quantity of water from the River

A.D. 1907. Burn before the construction of the authorised reservoirs and that the provisions of the Water Act should be amended as by this Act provided:

And whereas it is expedient that the period allowed for the completion of the waterworks authorised by the Water Act should be extended as provided by this Act:

And whereas by the Harrogate Waterworks Tramroad Act 1904 (in this Act referred to as "the Harrogate Tramroad Act") the mayor aldermen and burgesses of the borough of Harrogate (in this Act referred to as "the Harrogate Corporation") were authorised to construct and have since constructed a temporary tramroad in order to facilitate the construction of certain waterworks authorised by the Harrogate Water Act 1901:

And whereas by the Leeds Corporation (Waterworks) Railway Act 1904 (hereinafter referred to as "the Waterworks Railway Act") the Corporation were authorised to construct certain short lines of railway (in continuation of the said tramroad) to facilitate the construction of the waterworks authorised by the Water Act and provision was made for working the tramroad and railways for the benefit of both corporations but the corporations were required to take up and remove the tramroad and railways at or soon after the period allowed for the completion of the waterworks authorised by the said Acts and it is expedient that the Harrogate Tramroad Act and the Waterworks Railway Act should be amended as by this Act provided and that the further powers contained in this Act relating to the tramroad and railways should be conferred upon the Corporation:

And whereas the Corporation in anticipation of their being empowered to use certain lands known as the Gateforth Estate for the treatment and disposal of the sewage of the city purchased the said estate but inasmuch as the proposed sewage scheme was not sanctioned by Parliament it is expedient that the Corporation should be empowered to sell or dispose of the said lands and that the borrowing powers in respect of such purchase contained in this Act should be conferred upon the Corporation:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for or in relation to the purchase of the Gateforth Estate which (after deducting the amount standing to the credit of the sinking fund established for the repayment of the purchase money) amount

to the sum of eighty-four thousand nine hundred and fifty pounds : A.D. 1907.

And whereas it is expedient that the said sum should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the fifth and by adjournment the twelfth days of December one thousand nine hundred and six after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Yorkshire Post a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate :

And whereas the said resolution was published twice in the said Yorkshire Post and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the second day of January one thousand nine hundred and seven being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the north riding of the county of York and with the clerk of the peace for the west riding of the county of York and are hereinafter respectively referred to as the deposited plans sections and books of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

A.D. 1907.

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Leeds Corporation Act 1907.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Water.

Part III.—Lands.

Part IV.—Financial and miscellaneous provisions.

Incorporation
of Acts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the
“ consent in writing of the owner or reputed owner of any
“ such house or of the agent of such owner ” were omitted from section 44 :

The Waterworks Clauses Act 1863:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the reservoirs by this Act authorised and “the centre of the railway” means the boundaries of the reservoirs respectively.

Interpreta-
tion.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act and by the Leeds Corporation (Consolidation) Act 1905 meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise require—

“The Corporation” means the lord mayor aldermen and citizens of the city of Leeds;

“The city” means the city of Leeds;

A.D. 1907.

“The council” means the council of the city;

“The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the city;

“The city fund” “the city rate” “the consolidated fund” and “the consolidated rate” mean respectively the city fund city rate consolidated fund and consolidated rate of the city;

“The Water Act” means the Leeds Corporation Water Act 1901.

PART II.

WATER.

5. The Corporation may and shall abandon the construction of the following works and part of work authorised by the Water Act (namely):—

Abandonment of works authorised by Water Act.

(a) The Colsterdale Reservoir:

(b) So much of Aqueduct No. 1 as is situate between the point of commencement of that aqueduct and a point 30·40 chains or thereabouts south-east of the confluence of the Spruce Gill Beck and the River Burn:

(c) The Road Diversion No. 1:

(d) The line of pipes Work No. 7:

(e) The Road Diversion No. 2.

6. The abandonment by the Corporation under the authority of this Act of the works and part of work hereinbefore authorised to be abandoned shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Corporation on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of the work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Corporation to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845.

Compensation for damage to land by entry &c. for purposes of works abandoned.

A.D. 1907.

Compensation to be made in respect of works abandoned.

7. Where before the passing of this Act any contract has been entered into or notice given by the Corporation for the purchasing of any land for the purposes of or in relation to the works and part of work authorised to be abandoned by this Act the Corporation shall (if the Corporation so desire) be released from all liability to purchase or to complete the purchase of any such land (so far as such land is not required for the purpose of the works by this Act authorised) but notwithstanding full compensation shall be made by the Corporation to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Power to make water-works.

8. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited books of reference and according to the levels shown on the deposited sections the works hereinafter described (that is to say):—

Work No. 1 A reservoir (to be called “the New Colsterdale Reservoir”) in the parishes of Healey-with-Sutton and Colsterdale to be formed by means of an embankment or dam 16·4 chains or thereabouts in length across the River Burn at a point thereon 8 chains or thereabouts measured in a south-easterly direction from the farmhouse known as Body Close House and extending from the said embankment or dam up the River Burn to a point thereon 53 chains or thereabouts from the confluence of the River Burn and the Birk Gill Beck measured in a westerly direction and also extending up the Birk Gill Beck to a point 45·4 chains or thereabouts measured in a north-westerly direction from the said confluence:

Work No. 2 An aqueduct (to be called “Aqueduct No. 1”) consisting of one or more conduits or lines of pipes commencing in the parish of Healey-with-Sutton by a junction with Aqueduct No. 1 authorised by the Water Act and terminating in the parish of Colsterdale in the New Colsterdale Reservoir by this Act authorised:

Work No. 3 A catchwater or conduit (being an extension of Catchwater No. 1 authorised by the Water Act) in the

parish of Healey-with-Sutton commencing by a junction with the said Catchwater No. 1 and terminating in the Spruce Gill Beck: A.D. 1907.

Work No. 4 A conduit or line of pipes (to be called "Conduit A") commencing in the parish of Colsterdale in the New Colsterdale Reservoir by this Act authorised and terminating in the parish of Healey-with-Sutton by a junction with the catchwater (Work No. 3) by this Act authorised:

Work No. 5 A conduit or line of pipes (to be called "Conduit B") commencing in the parish of Colsterdale in the River Burn and terminating in the parish of Healey-with-Sutton by a junction with Work No. 2 by this Act authorised:

Work No. 6 A road diversion (to be called "Road Diversion No. 1") commencing in the parish of Colsterdale and terminating in the parish of Healey-with-Sutton:

Work No. 8 A covered service reservoir (to be called "the Bramley Reservoir No. 2") in the township of Armley and Bramley in the city adjoining the existing Leeds Corporation Bramley Reservoir:

Work No. 9 A covered service reservoir (to be called "the Dewsbury Road Reservoir") in the township of Holbeck in the city in certain fields adjoining the public footpath or road known as Gipsy Lane:

Work No. 10 A conduit consisting of a line or lines of pipes in the township of Holbeck in the city commencing at the junction of Dewsbury Road with Old Lane and terminating in the Dewsbury Road Reservoir by this Act authorised.

9. The Corporation in addition to the foregoing principal works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters aqueducts culverts tunnels adits shafts drains junctions sluices by-washes weirs gauges wells tanks basins filter beds filters embankments dams retaining walls bridges roads tramroads approaches telegraphic and telephonic apparatus engines pumps valves machinery buildings appliances apparatus and conveniences connected with or ancillary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same. Subsidiary waterworks.

A.D. 1907.

Power to deviate.

10. In the construction of the works authorised by this Part of this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans (and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits) and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and to any extent downwards Provided as follows (that is to say) :—

The Corporation shall not construct any embankment or dam of any reservoir by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or dam and three feet in addition :

Except for the purpose of crossing over a stream no part of the aqueducts or conduits by this Act authorised shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Period for completion of works.

11. If the works by this Part of this Act authorised and delineated on the deposited plans are not completed within nine years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as are then completed Provided that the Corporation may at any time lay down additional conduits or lines of pipes to form part of the aqueducts by this Act authorised.

Power to take waters.

12. Subject to the provisions of this Act the Corporation may for the purposes of their waterworks collect impound take use get and appropriate all the waters of the River Burn and of all tributaries streams and springs of that river which can or may be intercepted by the New Colsterdale Reservoir and the catchwaters conduits and other waterworks by this Act authorised or by the catchwater (Work No. 9) authorised by the Water Act.

New works to form part of existing waterworks undertaking.

13. Subject to the provisions of this Act the waterworks to be constructed under the authority of this Part of this Act shall for all purposes whatsoever be deemed part of the waterworks undertaking of the Corporation.

Extension of time for construction of authorised waterworks.

14. The time limited by section 9 of the Water Act for the completion of the works authorised by that Act is hereby extended (except as to the works authorised to be abandoned) till the

expiration of five years from the seventeenth day of August one thousand nine hundred and eleven (the period limited by the said section for the completion of the said works) and the said section shall be read and have effect accordingly. A.D. 1907.

15. Subsection (1) of section 8 (Compensation water) of the Water Act shall be read and apply as if the following provisions were inserted in that subsection instead of the provisions (A) and (B) therein contained (that is to say):— Amendment of section 8 of Water Act as to compensation water.

(A) From the New Colsterdale Reservoir on and from the completion and filling for use of that reservoir two million five hundred and seventy-eight thousand eight hundred and fifty-three (2,578,853) gallons of water per day:

(B) From the Leighton Reservoir (Work No. 2 authorised by the Water Act) on and from the completion and filling for use of that reservoir two million three hundred and eight thousand five hundred and sixty-three (2,308,563) gallons of water per day such quantity being inclusive of the compensation water which the Harrogate Corporation are by the Harrogate Water Act 1901 required to discharge from their Roundhill Reservoir and on the completion of the catchwater (Work No. 9) authorised by the Water Act and of the catchwater (Work No. 3) authorised by this Act the further quantity of six hundred and ninety-six thousand four hundred and eighty-three (696,483) gallons of water per day in respect of water which the Corporation are authorised to take by means of those catchwaters.

16.—(1) Notwithstanding anything in the Water Act or this Act contained the Corporation may until the time limited for the completion of the New Colsterdale Reservoir shall have expired or the said reservoir shall have been completed whichever may first happen take appropriate and use from the River Burn a quantity of water not exceeding eight million gallons per day if and so long as there is passing down the River Burn at or immediately below the intake of Conduit B by this Act authorised a quantity of water at the rate of three million gallons per day exclusive of the quantity taken by the Corporation. Temporary power to take waters from streams.

(2) The Corporation shall construct and so long as they take water under the provisions of this section maintain on the Conduit B a suitable self-recording gauge or appliance for measuring the quantity of water so taken.

A.D. 1907.

(3) The Corporation shall construct and so long as they take water under the provisions of this section maintain below the intake of the Conduit B a weir and measuring gauge constructed in such manner and at such level as to ensure that no water shall pass into the said conduit until the flow of water over or through the gauge and down the River Burn shall be at the rate of three million gallons per day.

(4) The said gauges appliances and weir shall be open to the inspection and examination of any person appointed by the Board of Agriculture and Fisheries the board of conservators of the Yorkshire Fishery District the lord mayor aldermen and citizens of the city of York and the York Waterworks Company or any of them and of the several persons for the time being interested in the water so to be taken or to flow through or over the same.

(5) If at any time any such gauge appliance or weir shall be out of repair or in an unfit condition for the purpose for which it is intended the Corporation shall forthwith put the same in fit repair and condition and if they fail to do so within one month after notice in writing given to them in that behalf by or on behalf of the Board of Agriculture and Fisheries the board of conservators of the Yorkshire Fishery District the lord mayor aldermen and citizens of the city of York or the York Waterworks Company or any person interested in the waters then such body or person may cause the said gauge appliance or weir to be put in fit repair and condition and may recover the reasonable cost of so doing from the Corporation.

(6) In the event of any difference or disagreement between the Corporation and the bodies and persons hereinbefore mentioned in this section or any of them with respect to the construction maintenance or use of the gauges appliances or weir or any of them such difference or disagreement shall be settled and determined by an engineer to be agreed upon by the parties in difference or failing such agreement by an engineer to be nominated on the application of either party after seven days' notice in writing to the other party by the President of the Institution of Civil Engineers in London.

(7) If the Corporation fail to comply with the foregoing provisions of this section they shall be liable to a penalty not exceeding five pounds per day to the occupiers of any mills or works on the course of the said river who may have sustained loss by such failure.

(8) If the Corporation shall under the provisions of this section take from the River Burn in any one day a greater quantity of water than eight million gallons or if they shall at any time under the provisions of this section take any water from the said river when a less quantity than three million gallons of water is passing down the same at or immediately below the intake of Conduit B by this Act authorised they shall for every such offence pay a penalty not exceeding twenty pounds to the board of conservators of the Yorkshire Fishery District the lord mayor aldermen and citizens of the city of York and the York Waterworks Company or one of such bodies but so that one penalty only shall be recoverable under this subsection for each default.

A.D. 1907.

(9) Any penalty under this section may be recovered summarily and shall be paid with full costs of suit to the body or person by whom the penalty is recovered.

(10) The provisions of this section shall be accepted and taken as full compensation for all water which the Corporation are authorised to take under the powers of this section.

17. Subsection (2) of section 8 (Compensation water) of the Water Act shall be read and have effect as if the "Board of Agriculture and Fisheries" were substituted for the "Board of Trade."

Substitution of Board of Agriculture and Fisheries for Board of Trade in Water Act.

18.—(1) For the purpose of executing any necessary work of repair of cleansing or of examining any aqueduct conduit or reservoir by the Water Act or this Act authorised the Corporation may cause the water in any such aqueduct conduit or reservoir to be temporarily discharged into any available stream or water-course.

Temporary discharge of water into streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

19. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the aqueducts and conduits authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which

Application of Waterworks Clauses Act 1847 to conduits discharge pipes and telephones.

A.D. 1907. — the Corporation may and which they are authorised to erect or lay down for the purposes of their water undertaking.

For protec-
tion of Post-
master-
General.

20. Any telegraphic or telephonic apparatus made maintained erected or laid down by the Corporation under the authority of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Extension of
right of user
of tramroad
and railways.

21.—(1) Notwithstanding anything contained in the Harrogate Tramroad Act and the agreement scheduled thereto or in the Waterworks Railway Act the Corporation may continue to use the tramroad and railways by those Acts respectively authorised until the expiration of the period limited by this Act for the construction of the waterworks authorised by the Water Act and this Act or for such shorter period as the Corporation may require to use the said tramroad and railways and such extended period of user is in this section referred to as "the prolonged period."

(2) The obligation imposed upon the Harrogate Corporation by the Harrogate Tramroad Act to abandon the said tramroad to remove the rails thereof and to restore the surface of the lands and the obligation imposed upon the Corporation by the Waterworks Railway Act to take up and remove the rails and materials of the said railways shall not respectively arise until the expiration of the prolonged period.

(3) Any easements or rights of user granted to the Harrogate Corporation or to the Corporation over any lands for or in respect of the construction and maintenance of the said tramroad and railways respectively are hereby extended for the prolonged period.

(4) The Corporation shall pay to the grantors of any easement or right so prolonged and to any other owners and occupiers of lands injuriously affected by the provisions of this section full compensation for the additional loss or damage (if any) sustained by such grantors owners and occupiers by reason of the prolonged period of user and the amount of such compensation shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts.

Stopping up
of roads and
vesting of
site and soil
in Corpora-
tion.

22. So soon as the road diversion by this Part of this Act authorised shall have been completed to the satisfaction of two justices and opened to the public the Corporation may stop up the several roads and footpaths in substitution for which the road diversion is made between the points of commencement and

termination of the said road diversion and thereupon the rights of way in or over the same shall be and the same are hereby extinguished and the site and soil of the portions of the roads and footpaths stopped up and discontinued shall if and so far as the Corporation are the owners of the lands on both sides thereof be vested in them. A.D. 1907.

Before applying to the justices for their certificate the Corporation shall give to the road authority of the district in which the said existing roads and footpaths are situate seven days' notice in writing of their intention to apply for the same:

Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

23. The road diversion by this Part of this Act authorised shall be maintained in repair by and at the cost of the Corporation for twelve months after the completion of all works authorised by this Act in connection with the construction of the New Colsterdale Reservoir and from and after the expiration of the said period of twelve months such road diversion shall be maintained in repair by and at the expense of the authority or person by whom or at whose expense the road or footpath in substitution for which the road diversion is made was repairable. Maintenance of diverted road.

24. The quantities of land which may be taken by the Corporation from the under-mentioned commons or reputed commons for the purposes of this Act shall not exceed the respective quantities hereinafter mentioned (that is to say):— Limit of quantity of land to be taken from commons.

In Gate Bridge Quarry one hundred and twenty square yards:

In Masham Moor (Agra Moor) eleven acres.

25. The lands shown on the deposited plans and known as Gate Bridge Quarry and Masham Moor (Agra Moor) shall if acquired be purchased and taken subject to the existing rights of common (if any) over and in respect of the same but this provision shall not apply to any land reasonably required by the Corporation for the construction maintenance and user of the works authorised by this Act. As to common rights.

26. For the protection of the Masham Urban District Council (in this section referred to as "the council") the following For protection of Masham

A.D. 1907. provisions shall notwithstanding anything contained in this Act or
Urban Dis- in the Acts incorporated therewith unless otherwise agreed between
trict Council. the Corporation and the council have effect (that is to say):—

- (1) Before commencing the trench at the New Colsterdale Reservoir by this Act authorised the Corporation shall lay down a four-inch main or line of pipes from the existing storage basin of the Corporation at the spring at Spring House the position of which is shown upon a plan signed by Charles George Henzell on behalf of the Corporation and John Henry Hanson on behalf of the council and marked "Spring House Supply" and connect the same to the main or line of pipes which convey the water supply to Masham and shall in the event of the water supply to Masham being interfered with convey the water from the said spring into the said last-mentioned main or line of pipes :
- (2) In the event of interference with the springs or supply of water which feed the existing tank of the council the Corporation shall as soon as may be reasonably practicable provide a permanent new supply of water from the spring at Spring House if that spring be found to be sufficient in quantity for the supply of the district of the council and shall construct at Spring House a covered storage tank of equal capacity to the existing tank of the council in such a position as shall be approved and shall connect the same by means of six-inch pipes to the existing main or line of pipes of the council which convey the water supply to Masham :
- (3) In the event of the spring at Spring House being found to be insufficient for the supply of the district of the council the Corporation shall as soon as may be reasonably practicable provide a new supply of water from the Rattling Spring the position of which is shown upon the said plan and marked "Rattling Spring" sufficient in quantity for the supply of the district of the council and shall convey the same by means of a six-inch main or line of pipes to the existing tank of the council :
- (4) Any permanent main or line of pipes laid under the provisions of this section shall consist of a new spigot or socketted six-inch cast iron main or line of pipes

coated with Dr. Angus Smith's solution and jointed in lead weight per lineal yard 93 lbs. with a proper connection to the existing main or line of pipes of the council and shall be provided with all necessary and proper valves and wash-outs for controlling the supply of water and flushing the pipes as efficiently as the council are now able to do : A.D. 1907.

- (5) The freehold of the site of the substituted source of water supply shall be conveyed by the Corporation to the council together with a right of way and easement in perpetuity for such permanent main or line of pipes as aforesaid between the source of such supply and the existing works or mains of the council as the case may be free from any cost or charge whatsoever The extent of the site to be so conveyed shall in the case of the spring at Spring House be the plot of land shown upon the said plan and distinguished by the colour pink or in the case of the Rattling Spring the plot of land also shown upon the said plan distinguished by the colour green :
- (6) Where the existing main or line of pipes for conveying water from the existing tank of the council to Masham passes through lands now or hereafter belonging to the Corporation the council shall be entitled in perpetuity to enter upon such lands for the purpose of repairing examining renewing and maintaining such main or line of pipes :
- (7) The Corporation shall at all reasonable times permit the engineer of the council or other persons appointed by them for the purpose to enter upon such works of the Corporation by this Act authorised as may be likely in any way to affect the water supply of the council and to inspect and examine the same to ascertain whether there is any interference with their water supply :
- (8) The whole length of main or line of pipes which shall by reason of the aforesaid substituted works cease to be used as a means of conveying water from the reservoir of the council shall from and after the completion of the permanent substituted main or line of pipes become the property of the Corporation :

A.D. 1907.

(9) At any time after the Corporation shall have constructed the aqueduct or line of pipes authorised by the Water Act and therein described as Work No. 4 and shall have commenced to supply water from the works by the Water Act or this Act authorised the council shall be at liberty to serve notice upon the Corporation of their desire to be supplied by the Corporation with water in bulk for use within the district of the council and the Corporation shall within six months after receipt of such notice commence and at all times thereafter continue to supply to the council by means of a main or pipe laid along Micklebury Lane to connect the delivery main of the Corporation authorised by the Water Act with the existing main or pipe of the council such a quantity of water in bulk as the council shall from time to time reasonably require for use as aforesaid and the council shall take and pay for the same at such price as shall be agreed or as failing agreement shall be determined by arbitration For the purpose of measuring the said supply of water the Corporation shall provide and fix all necessary and proper meters appliances and fittings Provided always that the Corporation shall not be under any obligation to supply water to the council if and so long as the Corporation would thereby be prevented from giving a full and efficient supply for domestic purposes within their water limits or if such supply be prevented by frost unusual drought or unavoidable accident or by reason of necessary repairs to any part of the works of the Corporation or other works or if by reason of the default of the council any works of the council for the distribution of the water so supplied shall be in such a state of repair as to cause undue loss or waste of water The council shall be at liberty at any time or times at their own expense to execute all such works as may be necessary or expedient for distributing the said supply of water in such manner as they shall think fit:

(10) The Corporation shall at their own expense provide and lay all pipes and mains necessary or proper for such supply of water in bulk as aforesaid with all necessary and proper meters joints fittings and appliances:

- (11) The Corporation shall not stop up permanently or temporarily any part of any road within the district of the council to be diverted under this Act unless and until the diverted road in substitution for the same shall be completed and open for traffic :
- (12) All works in this section referred to and all works under the powers and for the purposes of this Act in connection with which the Corporation shall break up or interfere with the surface of any road other than a county main road within the district of the council shall be carried out under the supervision and to the satisfaction of the engineer of the council and in all respects in accordance with such conditions as the council shall reasonably require :
- (13) The structure of the bridge arches and works for carrying the diverted road over the New Colsterdale Reservoir and the surface of the roadway of the said bridge shall at all times be maintained by and at the expense of the Corporation to the reasonable satisfaction of the council :
- (14) The Corporation shall pay to the council all the reasonable costs charges and expenses incurred by the council in relation to their opposition to the Bill for this Act negotiations for settlement watching and other matters incidental thereto and the Corporation shall also from time to time discharge all the reasonable fees costs charges and expenses of the council their engineer or other person or persons in respect of inspection superintendence conveyancing and in respect of any other act or thing done or to be done under the provisions of this section :
- (15) In the event of the existing water supply of the district of the council being rendered insufficient for the supply of the district of the council by reason of the works authorised by this Act and so causing a diminution of the revenue of the council during the construction of the works at Colsterdale by this Act authorised the Corporation shall indemnify the council from and make good to them any such diminution of revenue :
- (16) Any question or difference which may arise between the Corporation and the council under this section shall

A.D. 1907.

be determined by arbitration under the provisions of the Arbitration Act 1889 :

(17) Section 24 (For protection of Masham Urban District Council) of the Water Act is hereby repealed.

Confirmation
of agreement
with Right
Hon. Lord
Masham.

27. In order to enable the Corporation to give effect if necessary to the foregoing provisions with respect to the Rattling Spring the agreement between the Right Honourable Samuel Cunliffe Baron Masham and the Corporation dated the eighth day of May one thousand nine hundred and seven and set forth in the schedule to this Act is hereby confirmed and made binding.

For protec-
tion of Right
Hon. Lord
Masham.

28. The provisions of section 25 of the Water Act and of section 28 of the Waterworks Railway Act shall mutatis mutandis apply and extend to the provisions of this Act so far as the estate known as the Swinton Estate is or may be affected or interfered with thereby.

Limiting
powers of
Corporation
to abstract
water.

29. The Corporation shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them after the passing of this Act unless the works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament Provided that any lands which may be acquired by the Corporation under the agreement set out in the schedule to this Act shall for the purposes of this section be deemed to be lands acquired before the passing of this Act.

For protec-
tion of North
Eastern
Railway
Company.

30. If the tramroad authorised by the Harrogate Tramroad Act shall become the property of the Corporation and so long as it shall remain their property the provisions of section 6 (For protection of North Eastern Railway Company) shall apply with the substitution of "the Corporation" as defined by this Act for "the Corporation" as defined by that Act.

For protec-
tion of Great
Northern
Railway
Company.

31. The following provisions for the protection of the Great Northern Railway Company (hereinafter in this section called "the company") shall unless with the previous consent of the company in writing under their common seal apply and have effect :—

(1) The expression "Great Northern property" where used in this section shall include any land railway work or convenience belonging to the company :

(2) With respect to any Great Northern property which the Corporation are by this Act authorised to enter upon

A.D. 1907.

use or interfere with for the purposes of Work No. 10 by this Act authorised the Corporation may purchase and take and the company may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the same an easement or right of constructing and maintaining thereon Work No. 10 as and so far as Work No. 10 is according to this Act to be constructed on Great Northern property but save as aforesaid the Corporation shall not without the previous consent in writing of the company under their common seal enter upon take use or interfere with any Great Northern property :

- (3) The consideration to be paid for any easement or right to be acquired by the Corporation under the preceding subsection shall in case of dispute be determined in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement :
- (4) Work No. 10 by this Act authorised and all works connected therewith where they will be constructed on the bridge carrying the road known as Old Lane over the company's Hunslet railway or will otherwise affect Great Northern property shall be constructed and maintained so as not to interfere with the structure of the said bridge and in accordance with plans sections and specifications to be previously submitted to and reasonably approved by the engineer of the company (hereinafter called "the engineer") and all such works shall be constructed and repaired in such manner and at such times as shall be submitted to and previously approved by the engineer and under his superintendence and to his reasonable satisfaction The Corporation shall give the engineer except in cases of emergency not less than ten days' notice in writing before commencing to execute any works of construction or repair over or affecting Great Northern property :
- (5) If by reason of the execution user or failure of the works of the Corporation or any act or omission of the Corporation or of their contractors or any person in the employment of the Corporation or of their

A.D. 1907.

contractors or otherwise any railway or work belonging to the company shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense or in the event of their failing so to do then the company may make good the same and the reasonable expense thereof as certified by the engineer shall be repaid to the company by the Corporation on demand and the Corporation shall indemnify the company against all losses which the company may sustain and shall pay all costs charges and expenses which the company may be put to or incur by reason of the execution user or failure of any of the works of the Corporation or any act or omission of the Corporation or of their contractors or of any person in the employment of the Corporation or their contractors or otherwise :

- (6) If any difference shall arise between the Corporation and the company under this section the same shall be determined by an arbitrator to be appointed failing agreement by the Board of Trade on the application of either party after notice to the other.

Saving
powers of
Board of
Agriculture
and Fisheries
with regard
to fish-
passes.

32. Nothing in this Act contained and no act done or work executed thereunder shall be deemed to restrict or interfere with the powers of the Board of Agriculture and Fisheries under section 25 of the Salmon Fishery Act 1861 and section 46 of the Salmon Fishery Act 1873 with regard to fish-passes and no authority given or power conferred by this Act shall be deemed to be lawful authority within the meaning of the last-mentioned section.

PART III.

LANDS.

Power to
acquire
lands.

33. Subject to the provisions and for the purposes of Part II. (Water) of this Act the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference.

Period for
compulsory
purchase of
lands.

34. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Correction of
errors &c. in
deposited

35. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any

lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the riding and county in which the lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for such riding and county and a duplicate thereof shall also be deposited with the town clerk and the clerk of the parish council (if any) in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk and clerk of the parish council respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

A.D. 1907.

plans and
books of re-
ference.

36.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the aqueducts conduits and catchwaters respectively authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the aqueducts conduits and catchwaters respectively and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

Power to
acquire ease-
ments only
for aqueducts
&c.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such aqueducts conduits and catchwaters respectively where they are laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

A.D. 1907.

(3) Provided also that (except as to land forming part of a street) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision but this provision shall not apply in regard to so much of any aqueduct conduit or catch-water by this Act authorised as shall be in tunnel and at a depth of not less than forty feet from the surface of the ground.

Persons
under dis-
ability may
grant ease-
ments &c.

37. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

As to com-
pensation.

38. Section 11 (Provisions as to compensation) of the Leeds Corporation (General Powers) Act 1901 shall extend and apply to and with respect to the purchase and taking of land under the provisions of this Act except that "one thousand nine hundred and seven" shall be substituted for "one thousand nine hundred and one."

Sale of
Gateforth
Estate.

39.—(1) The Corporation shall within ten years from the passing of this Act sell the lands (and the minerals thereunder either together or separately) known as the Gateforth Estate in the townships of Gateforth Burn and Hambleton and parish of Brayton in the west riding of the county of York either together or in parcels and subject to such conditions as they may think fit to impose and the Corporation shall apply the proceeds of such sale (after payment of the expenses of and incidental to such sale) in or towards the extinguishment of any loan raised by them for the purchase of such estate.

(2) The Corporation may lay out fence drain and prepare the lands forming the Gateforth Estate for sale and may search for mines thereunder and for that purpose may make such bore-holes as may be necessary.

(3) Until the Corporation shall have sold the said estate they may grant leases of any of the lands and the mines thereunder forming part of the estate at such rents (with or without premium) and subject to such covenants and conditions as they may think fit and every such lease shall contain a proviso for re-entry in case of non-payment of rent or breach of any of the lessees' covenants and the Corporation shall apply the rents and profits arising from such leases in or towards the payment of the interest and sinking fund payments payable in respect of moneys borrowed for the purchase of the said estate but any money received by the Corporation by way of premium shall be applied in or towards the extinguishment of any loan raised by them for the purchase of the estate. A.D. 1907.

(4) Any surplus which may arise from the sale of the Gateforth Estate shall be applied towards the repayment of any loan contracted by the Corporation for sewage purposes.

PART IV.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

40.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes hereinafter mentioned the sums following:— Power to borrow.

(a) For and in relation to the purchase of the Gateforth Estate eighty-five thousand pounds :

(b) For the costs and expenses of this Act as hereinafter provided the sum requisite for the purpose.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for any of the purposes mentioned in this section or purposes of this Act as the Local Government Board may sanction.

41. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):— Period for repayment.

As to moneys borrowed for the purpose (a) in the last preceding section of this Act mentioned within fifty years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (b) in the last preceding section of this Act mentioned within five years from the date of the passing of this Act :

A.D. 1907.

As to moneys borrowed with the sanction of the Local Government Board within the period sanctioned by that Board.

Moneys borrowed to be principal moneys within meaning of Acts of 1901 and 1905.

42. The moneys authorised to be borrowed under the provisions of this Act shall be and the same are hereby declared to be principal moneys within the meaning of the Leeds Corporation (General Powers) Act 1901 and the Leeds Corporation (Consolidation) Act 1905 and the provisions of those Acts with respect to principal money the borrowing or raising of money and the payment off of borrowed money shall subject to the provisions of this Act apply accordingly and such principal moneys shall be primarily chargeable on the Consolidated Fund.

Power to apply moneys borrowed under Water Act to purposes of this Act.

43. The Corporation may apply any moneys borrowed or to be borrowed under the Water Act for or in connection with the purchase of land and the execution of works authorised by Part II. (Water) of this Act.

Inquiries by Local Government Board.

44.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Audit of accounts.

45. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Costs of Act.

46. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund and city rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act. A.D. 1907.

AN AGREEMENT made the eighth day of May one thousand nine hundred and seven between the Right Honourable SAMUEL CUNLIFFE BARON MASHAM of Swinton Masham in the county of York (hereinafter called "the owner") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LEEDS (hereinafter called "the Corporation") of the other part.

WHEREAS the Corporation are promoting in the present session of Parliament a Bill to empower the Corporation to construct additional waterworks and to acquire lands and for other purposes:

And whereas the Masham Urban District Council have presented a petition against the said Bill in which they allege (inter alia) that the carrying out of the works of constructing the new Colsterdale Reservoir proposed to be constructed under the provisions of the Bill is calculated to tap and seriously diminish if not wholly cut off the supply of water available for the Masham Urban District and the Corporation have therefore agreed to insert in the Bill a clause for the protection of the said district council which clause provides (inter alia) as follows:—

- (1) Before commencing the trench at the new Colsterdale Reservoir by this Act authorised the Corporation shall lay down a 4-inch main or line of pipes from the existing storage basin of the Corporation at the spring at Spring House the position of which is shown upon a plan signed by Charles George Henzell on behalf of the Corporation and John Henry Hanson on behalf of the council and marked "Spring House Supply" and connect the same to the main or line of pipes which convey the water supply to Masham and shall in the event of the water supply to Masham being interfered with convey the water from the said spring into the said last-mentioned main or line of pipes:
- (2) In the event of interference with the springs or supply of water which feed the existing tank of the council the Corporation shall as soon as may be reasonably practicable provide a permanent new supply of water from the spring at Spring House if that spring shall be found to be sufficient in

A.D. 1907.

quantity for the supply of the district of the council and shall construct at Spring House a covered storage tank of equal capacity to the existing tank of the council in such a position as shall be approved and shall connect the same by means of 6-inch pipes to the existing main or line of pipes of the council which convey the water supply to Masham :

- (3) In the event of the spring at Spring House being found to be insufficient for the supply of the district of the council the Corporation shall as soon as may be reasonably practicable provide a new supply of water from the Rattling Spring the position of which is shown upon the said plan and marked "Rattling Spring" sufficient in quantity for the supply of the district of the council and shall convey the same by means of a 6-inch main or line of pipes to the existing tank of the council :

* * * *

- (5) The freehold of the site of the substituted source of water supply shall be conveyed by the Corporation to the council together with a right of way and easement in perpetuity for such permanent main or line of pipes as aforesaid between the source of such supply and the existing works or mains of the council as the case may be free from any cost or charge whatsoever The extent of the site to be so conveyed shall in the case of the spring at Spring House be the plot of land shown upon the said plan and distinguished by the colour pink or in the case of the Rattling Spring the plot of land also shown upon the said plan distinguished by the colour green :

Provided that if the Rattling Spring should be ultimately determined upon the conveyance of the freehold site is conditional upon the Corporation obtaining from the landowner the necessary lands and easements and failing to obtain by agreement such lands and easements the Corporation shall in the next application to Parliament apply for and use their best endeavours to obtain the necessary powers for obtaining the same :

And whereas the Rattling Spring above referred to is situate on settled land of which the owner is tenant for life in possession :

And whereas in order to enable them should it become necessary so to do to obtain a supply of water from the Rattling Spring in compliance with the said clause the Corporation have requested the owner to grant to them the option of purchase and the further option hereinafter expressed which subject to the confirmation of these presents by

Parliament he has consented to do for the considerations hereinafter appearing: A.D. 1907.

Now these presents witness and it is hereby agreed by and between the parties hereto as follows:—

1. In consideration of the sum of ten pounds upon the execution of these presents paid by the Corporation to the owner the receipt whereof the owner doth hereby acknowledge the owner or his successor in title for the time being will at any time before the expiration of ten years from the date of these presents if required by the Corporation so to do sell to the Corporation in fee simple free from incumbrances at the price of one hundred pounds all that plot of land situate at Colsterdale in the urban district of Masham in the county of York coloured pink on the plan annexed hereto containing two roods twelve perches and comprising the site of the above-mentioned spring known as the Rattling Spring together with the right or easement of making constructing maintaining and renewing a line or lines of pipes in and upon the strip of land six feet wide leading from the said plot of land coloured pink to the land of the Corporation indicated on the said plan by being edged with blue and the position of which strip of land is indicated on the said plan by the colour green.

2. If the Corporation shall decide to exercise the said option of purchase they shall on the completion of such purchase pay to the owner or his successor in title for the time being an additional sum of 440*l.* and thereupon the owner or such successor in title shall covenant to the intent that such covenant shall run with the lands affected thereby that he will not at any time do or suffer anything to be done on the lands of the covenantor which will intercept the flow of underground or surface water supplying the said Rattling Spring or otherwise appreciably diminish the supply of water thereto.

3. In the event of the option being exercised the said land shall be sold subject to the like reservations conditions and provisions as are contained in section 25 of the Leeds Corporation Water Act 1901 in the same manner as if such reservation conditions and provisions so far as they are not varied by this agreement and affect the land by that Act provided to be acquired were inserted herein and can relate to a purchase by private contract.

4. These presents are made subject to the confirmation of Parliament and the Corporation shall use their best endeavours to obtain such confirmation by a clause in the said pending Bill This agreement is also subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in the agreement it shall be competent to either party thereto to withdraw the same.

A.D. 1907.

In witness whereof the owner has hereunto affixed his hand and seal and the Corporation have hereunto affixed their corporate common seal the day and year first before written.

Signed sealed and delivered by the said }
Samuel Cunliffe Baron Masham in the } MASHAM.
presence of

WALTER EVANS

Swinton Masham

Butler.

L.S.

The corporate common seal of the city of Leeds was }
affixed hereto in the presence of

WM. WALKER

Chairman of the Finance Committee.

WM. DERRY

City Treasurer.

L.S.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., I.S.O., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.